

22STCV01394 22STCV01394

County: los-angeles

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Case Number: 22STCV01394 Hearing Date: August 6, 2026 Dept: 729

Superior Court
of California

County of Los
Angeles

DEPARTMENT 729

TENTATIVE
RULING

FIVE POINTS, LP,

vs.

CITY OF
IRWINDALE, et al.

Case No.:
22STCV01394

Hearing Date: August 6, 2026

Defendant

City of Irwindale's motion for
attorneys' fees on appeal is granted in the reduced amount of \$170,081.50,
comprised of \$164,459.50 in attorneys' fees and \$5,622.00 in attorneys' fees
incurred on the instant motion.

Defendant City of Irwindale's request

to amend the judgment to reflect the attorneys' fees and costs awarded at the trial court level, as well as those awarded through the instant motion, to reflect the total fees and costs recoverable from the Plaintiff by the City is granted as modified per Plaintiff's objection.

Defendant City of Irwindale ("City") ("Defendant")

moves for an order awarding its attorneys' fees and costs incurred on appeal in the total amount of \$175,331.50, comprised of \$164,459.50 in attorneys' fees and \$10,872.00 in attorneys' fees incurred on the instant motion against Plaintiff Five Points, LP ("Five Points") ("Plaintiff") by defending the appeal in this matter.

(Notice of Motion, pg. 2; C.C.P. §§1032(a)(4), (b); §1033.5(a)(10); Civ.

Code §1717.) City moves on the basis (1)

this matter was terminated when the Court of Appeal affirmed the judgment of dismissal in favor of the City and issued its Remittitur stating the City is the prevailing party; (2) it is entitled to an award of its actual attorneys' fees and costs pursuant to the contractual language in the agreement between the parties at issue in this matter that: "The prevailing party in any action to enforce this Agreement shall be entitled to recover attorneys' fees and costs from the other party"; and (3) the City seeks an amended judgment reflecting the attorneys' fees and costs awarded at the trial court level, as well as those awarded through the instant motion, to reflect the total fees and costs recoverable from the Plaintiff by the City. (Notice of Motion, pg. 2.)

Evidentiary Objection

Plaintiff's 6/5/26 evidentiary

objection to the proposed amended judgment is sustained as to "Plaintiff Five Points shall satisfy this judgment in full and pay to the City the total amount of attorneys' fees and costs awarded within 30 days of the notice of entry of judgment."

Background

On

October 28, 2015, Plaintiff's predecessor in interest entered into an Agreement for Purchase, Sale & Development of Real Property and Joint Escrow Instructions ("PSDA") with City for the acquisition and development of approximately 25.4 acres of land, located within the City at 5175 Vincent

Avenue ("Property"). (FAC ¶25.) The parties entered into the PSDA with the ultimate goal of Plaintiff developing a project that would include "light industrial and commercial improvements" on the Property, as set forth in the Scope of Development. (FAC, Exh. 1, pg. 8, Recital F.) In 2017, Plaintiff submitted a development application to City to develop a single-story ±545,735 square-foot speculative concrete tilt-up building and associated passenger vehicle and truck parking ("Project") on the Property. (FAC ¶¶42, 46.) City ultimately denied Plaintiff's application. (FAC ¶¶62, 63.)

On January 12, 2022, Plaintiff brought the instant action against City, alleging causes of action: (1) breach of contract; (2) breach of the covenant of good faith and fair dealing; (3) promissory estoppel; (4) declaratory relief; (5) taking of property without just compensation; and (6) civil rights violations of procedural and substantive due process. (See Complaint.) Thereafter Five Points filed the operative First Amended Complaint ("FAC"), which removed the 6th cause of action for civil rights violations. (See FAC.) Plaintiff alleged that by rejecting the Project, City breached its contractual obligations and harmed Plaintiff because City was contractually obligated to approve the Project in accordance with the PSDA, which governs the development of the Property. (See FAC.)

On June 27, 2023, this Court sustained City's demurrer to the 1st through 4th causes of action without leave to amend, and sustained City's demurrer to Plaintiff's 5th cause of action for taking of property without just compensation with 20 days' leave to amend. (6/27/23 Minute Order.) Plaintiff was to file an amended pleading on or before July 24, 2023. Plaintiff failed to file a responsive pleading by July 24, 2023, or at any time thereafter. On November 8, 2023, this Court entered a judgment of dismissal in favor of the City as the prevailing party.

On April 12, 2024, this Court granted the City's motion for attorneys' fees in the reduced total amount of \$316,510.00, comprised of \$309,246.10 in attorneys' fees and \$6,533.50 in attorneys' fees. (See 4/12/24 Hearing on Motion for Attorneys Fees.)

Plaintiff appealed this Court's judgment

of dismissal and order sustaining a demurrer to the FAC without leave to amend as well as this Court's award of attorneys' fees and costs. On April 1, 2026, the Court of Appeal issued its remittitur affirming both of this Court's rulings.

On

May 11, 2026, City filed this motion for attorneys' fees. Plaintiff filed its opposition on July 24, 2026. City filed its reply on July 30, 2026.

Discussion

Civil Code §1717(a) provides, in part:

In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce the contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

(Civ. Code §1717(a).)[1]

A party who obtains an "unqualified victory" on a contract dispute is considered the prevailing party for purposes of Civil Code §1717 as a matter of law. (Hsu v. Abbata (1995) 9 Cal.4th 863, 876-877.) "Where a contract or a statute creates a right for the prevailing party to recover attorney fees, the prevailing party is also entitled to attorney fees on appeal." (Villinger/Nicholls Development Co. v. Meleyco (1995) 31 Cal.App.4th 321, 328, citing Palmer v. Agee (1978) 87 Cal.App.3d 377, 387-388.) Additionally, the phrase "prevailing party" is understood to include "[t]he party with a net monetary recovery . . . [and] a defendant in whose favor a dismissal is entered." (C.C.P. §1032(a)(4).)

Here, Section 12.7 of the PSDA provides,

In the event of any dispute between the parties hereto arising out of the subject matter of this Agreement or the Escrow, or in connection with the Site, the prevailing party

in such action shall be entitled to have and to recover from the other party its actual attorneys' fees and other expenses and costs in connection with such action or proceeding (including expert witness fees) in addition to its recoverable court costs.

(Decl. of Guerra ¶3, Exh. A at §12.7.)

Section 12.7 unambiguously reflects the Parties' intent that the prevailing party in a dispute arising out of the "subject matter of this Agreement . . . or in connection with the Site" is entitled to recover its attorneys' fees and costs. (Decl. of Guerra ¶3, Exh. A at §12.7.) All of Plaintiff's causes of action in this litigation arose out of the subject matter of the PSDA and in connection with the site/Property. (See FAC.) Plaintiff's requested relief included compensatory damages, consequential damages, for a judicial declaration of the rights and duties of the parties with respect to the PSDA, including that City was contractually obligated to approve the Project or else is in breach of the PSDA, and an award of just compensation. (See FAC Prayer.) Plaintiff's causes of action and the requested relief arise out of the subject matter of the Parties' Agreement, and in connection with the site/Property.

Accordingly, City is the undisputed prevailing party in this action and is entitled to an award of attorneys' fees on appeal.

Reasonable
Fees

To calculate a lodestar amount, the Court must first determine the reasonableness of the hourly rates sought by Defendant's counsel. The Supreme Court of California has concluded that a reasonable hourly lodestar rate is the prevailing rate for private attorneys "conducting non-contingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133, emphasis added.)

City's Counsel declares the following hourly rates for attorneys who worked on this case: (1) Adrian Guerra (\$270.00/hour); (2) June S. Ailin (\$270.00/hour); (3) Jamie L. Koontz (née Traxler) (\$255.00/hour); and (4) Shukan A. Patel (\$245.00/hour). (Decl. of Guerra ¶9.) Defendant has sufficiently demonstrated its counsel's hourly rates are reasonable in their community of practice in their

specialized area of law. (Decl. of Guerra ¶¶6, 8-10, Exhs. B, C.)

Plaintiff

does not challenge City's counsel's hourly rates and thereby concedes City's counsel's rates are reasonable.

Billed

Hours

The party

seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In this

case, the declarations and billing records provided by City's counsel are sufficient to meet the burden of proving the reasonableness of the claimed fees in terms of amounts and tasks. To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

City's

counsel provides that 711.8 hours were billed defending the two appeals. (Motion, pg. 9; Decl. of Guerra ¶10, Exhs. B-C.)

First, Plaintiff objects to the City's

hours on the basis that the moving papers fail to provide the Court with the minimum analysis necessary to determine whether the amount of time spent on

specific tasks by a particular attorney was reasonably necessary. (Opposition, pg. 2.) Plaintiff's objection is unavailing. The declaration of the Adrian R. Guerra

("Guerra") sets forth the categories of attorney work for which the City seeks compensation. (See Decl. of Guerra

¶6 ["The City has incurred a total of \$170,081.505 in billed and unbilled attorneys' fees, calculated as follows: a. 711.8 hours and \$164,459.50 in billed fees for the two appeals incurred April, 2024 through March, 2026. (Exh. B.); b. 22 hours and \$5,622 unbilled fees in preparing the instant motion March, 2026 through May, 2026. (Exh. C.); c. The fees incurred on the appeals

consist of the following categories: i. Analysis, Research, Drafting & Preparing Respondent's Briefs in both appeals; ii. Preparing for Oral Argument; iii. Responding to the Petition for Supreme Court Review; iv. Responding to Five Points' Public Records Act Requests..."].) In support of the declaration, the City produced the contemporaneous time records of its attorneys in the form of the legal invoices charged to the City. (Decl. of Guerra ¶10, Exhs. B, C.) "[C]ontemporaneous time records are the best evidence of lawyers' hourly work [and] eclipse other proofs." (Taylor v. County of Los Angeles (2020) 50 Cal.App.5th 205, 207.)

Second, Plaintiff argues that City's award should be reduced by \$43,000 for fees incurred in responding to Plaintiff's Public Records Act ("PRA") requests on the basis that there is no fee agreement between the parties for Plaintiff to pay for the City's attorneys' fees in response to a PRA request, and because the City assigned multiple attorneys to respond to the request. (Opposition at pg. 2-3.) Plaintiff's arguments are unavailing. Section 12.7 of the PSDA expressly authorizes the prevailing party to recover actual attorneys' fees and other expenses "in connection with" an action arising out of the Agreement, Escrow, or Site. (Decl. of Guerra ¶3.) Plaintiff does not dispute that it submitted PRA requests to the City that were duplicative of its discovery requests, nor does it dispute the timing of the requests and their relatedness to the City's appeals. On March 8, 2024, Plaintiff appealed the underlying judgment in this matter. (Supp.-Decl. of Guerra ¶2.) In March and April 2024, Plaintiff's counsel submitted two PRA requests to the City for records regarding the City's consideration of whether or not to allow Plaintiff to assume the City's clean-up obligations at the Property and/or design and build a modern and clean industrial development on the site located at 5175 Vincent Avenue, and communications regarding the ten (10) acres reserved by the City for future residential use or development as contemplated under the PSDA. (Decl. of Guerra ¶6(c)(iv); Supp.-Decl. of Guerra ¶3.) Plaintiff's original discovery requests were very broad in scope, and the City had produced approximately thirty-thousand responsive documents spanning over 16 years. (Supp.-Decl. of Guerra ¶4.) The documents responsive to Plaintiff's public records requests were already produced by the City through its discovery responses in the underlying litigation. (Supp.-Decl. of Guerra ¶4.) Even though the documents responsive to the requests were produced by the City through its discovery

responses in the underlying litigation, Plaintiff's appellate counsel made public records requests for these documents while the appeals were pending, which required a response from the City regarding these requests separate from the discovery responses. (Supp.-Decl. of Guerra ¶4.) The timing and subject matter of these requests indicates they were related to the appeal regarding the judgment of dismissal. (Decl. of Guerra ¶6(C); Supp.-Decl. of Guerra ¶3.)

Furthermore, the time requested and rates are reasonable given that the PRA work was inextricably intertwined with the appeals because Plaintiff sought records on the same Agreement, Site, and issues at stake in the appeal of the judgment during its pendency, and the City necessarily had to address and manage those requests to protect privileged information, avoid improper attempts to introduce extra-record evidence, and prevent prejudice to the City's appellate posture. (Supp.-Decl. of Guerra ¶8.) The City's billed fees in question fall squarely within "fees and other expenses and costs in connection with such action or proceeding" authorized by the PSDA §12.7.

The PRA work was undertaken because of, during, and directed to issues at stake in the appeal of the underlying judgment. Given the overlap of subject matter, custodians, privilege issues, and timing, apportionment of these fees is neither feasible nor required under the broad "in connection with" fee language of the PSDA, and Plaintiff identifies no discrete PRA task in the City's billing entries that was either unrelated to the appeals, or that was not necessary in this case. (Supp.-Decl. of Guerra ¶8.)

Accordingly, City's requested fees are granted in the total requested amount of \$164,459.50.

Motion
for Attorneys' Fees

City's counsel requests \$10,872.00 in attorneys' fees incurred on the instant motion. (See Motion, pgs. 10-11; Decl. of Guerra ¶10, Exh. C.) The Declaration of Guerra attached to the City's motion indicates "The City will provide information regarding the exact amount of its fees incurred for the balance of the work on

this motion with its reply papers.”

(Decl. of Guerra ¶11, emphasis added.)

The reply fails to provide this information; rather, it restates the blanket request for \$175,331.50 in fees and adds in a request for \$290.02 from its separately filed memorandum of costs on appeal. (Compare Motion, pg. 13 with Reply, pg. 10.)

The Court cannot determine the actual cost of fees incurred on the motion for attorneys’ fees, and therefore only grants the fees for drafting the motion in the reduced amount of \$5,622.00.

Costs

Although not addressed by either party in this motion, the Court also provides clarity on costs sought on appeal:

Any effort to tax or strike costs must occur in the form of a motion to strike or to tax costs and must be served and filed fifteen (15) days after service of the cost memorandum. (CRC, Rule 3.1700(b)(1).) After the 15-day deadline to file a motion to tax costs has passed, the Court clerk must immediately enter the costs. (CRC, Rule 3.1700(b)(4).)

On May 11, 2026, the City filed its memorandum of costs on appeal. (5/11/26 Memorandum of Costs.) No motion to strike was filed within the 15-day deadline. Therefore, the City is entitled to the costs requested on the 5/11/26 Memorandum of Costs, and the Court clerk must immediately enter the costs.

Conclusion

Accordingly, City’s motion for attorneys’ fees is granted in the reduced total amount of \$170,081.50, comprised of \$164,459.50 in attorneys’ fees and \$5,622.00 in attorneys’ fees incurred on the instant motion.

Moving Party to give notice.

Dated:

August _____, 2026

Hon.

Daniel M. Crowley

Judge of

the Superior Court

[1] The Court notes the City's citation to Civil Code

§1717 on page 7 of the moving papers quotes an earlier version of the statute that was removed in 1981. (Civ. Code, §

1717, Historical and Statutory Notes ["The 1981 amendment . . . deleted the former final paragraph, which read: [¶] 'As used in this section "prevailing party" means the party in whose favor final judgment is rendered.'"].)